

“Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” Civ. Code § 3294. “*Animus malus* or evil motive, then, is the central element of the malice which justifies an exemplary award.” *G. D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 30. “Oppression” means subjecting a person to cruel and unjust hardship in conscious disregard of his rights. *Monge v. Superior Court* (1986) 176 Cal.App.3d 503, 511.

In addition to the express allegations in the Complaint that Defendant acted with “malice, oppression, and/or fraud,” specific conduct is alleged that a trier of fact could well find amounted to conscious disregard of the Plaintiffs’ rights and/or a willful and conscious disregard of the rights or safety of Plaintiffs. See e.g. Complaint, ¶¶11-18 and 22. These allegations and the other allegations of the Complaint are sufficient to support the prayer for punitive and exemplary damages.

Disposition

The Court finds and orders as follows:

1. The Demurrer is OVERRULED.
2. The Motion to Strike is DENIED.
3. The Court shall issue the order after hearing.

14. 9:00 AM CASE NUMBER: C25-03561
CASE NAME: RENE ZAMORA VS. MONTEREY VENTURE LP
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: MONTEREY VENTURE LP
TENTATIVE RULING:

See Line 13 above.

15. 9:00 AM CASE NUMBER: L22-01760
CASE NAME: RALPH BARRIENTOS VS. KIMBERLY E. TOWER
***HEARING ON MOTION IN RE: MOTION FOR ATTORNEY’S FEES;MEMORANDUM OF POINTS**
ANDAUTHORITIES
FILED BY: BARRIENTOS, RALPH
TENTATIVE RULING:

Defendant and cross-complainant Kimberly E. Tower (“Landlord”) filed a Motion for Attorney’s Fees on January 30, 2026 (the “Motion for Attorney’s Fees”). The Motion for Attorney’s Fees was set for hearing on April 28, 2026 in Department 14.

Thereafter, the parties stipulated to the resetting of the motion for hearing in Department 34, the department that heard the trial. The Court approved that stipulation and the matter was reset for June 22, 2026 in Department 34.

The motion is opposed.